

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #10	CCRB Case #: 201701553	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 07/23/2016 5:10 PM	Location of Incident: North-east corner of 109th Avenue and Francis Lewis Boulevard	18 Mo. SOL 1/23/2018	Precinct: 105
Date/Time CV Reported Tue, 02/28/2017 2:05 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/28/2017 2:05 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Julio Meyreles	4019	940470	NARCBQS
2. POM Brian Volpi	21639	951404	NARCBQS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Oliver Balena	31185	946444	NARCBQS
2. DT3 Clifton Clarke	07333	916961	NARCBQS

Officer(s)	Allegation	Investigator Recommendation
A . POM Julio Meyreles	Abuse: Police Officer Julio Meyreles stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Brian Volpi	Abuse: Police Officer Brian Volpi stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Brian Volpi	Abuse: Police Officer Brian Volpi questioned § 87(2)(b)	C . Unsubstantiated
D . POM Julio Meyreles	Abuse: Police Officer Julio Meyreles searched the vehicle in which § 87(2)(b) was an occupant.	D . Exonerated

Case Summary

On February 28, 2017, § 87(2)(b) filed this complaint via telephone with the CCRB. On July 23, 2016, at approximately 5:10 p.m., § 87(2)(b) was pulled over in the area of 109th Avenue and Francis Lewis Boulevard in Queens by PO Julio Meyreles and PO Brian Volpi of Queens South Narcotics (**Allegation A, Allegation B**). PO Oliver Balena and Det. Clifton Clarke of Queens South Narcotics also arrived at the scene. PO Meyreles and PO Volpi approached § 87(2)(b)'s vehicle, and requested his license and registration. § 87(2)(b) complied with providing his documents, and was asked to step out of his vehicle. § 87(2)(b) exited his vehicle, and was allegedly frisked and searched by PO Volpi. PO Volpi allegedly asked § 87(2)(b) “where the guns were at” (**Allegation C**). Meanwhile, PO Meyreles entered § 87(2)(b)'s vehicle, and recovered approximately 25 grams of marijuana from his glove compartment (**Allegation D**). § 87(2)(b) was placed under arrest § 87(2)(b) (Board Review § 87(2)(b) [§§ 86(1)

There is no video footage of the incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) opted to have his complaint investigated § 87(2)(b).
- As of May 31, 2017, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 05).
- PO Meyreles has been a member of the service for 11 years. This is his first CCRB complaint.
- PO Volpi has been a member of the service for five years. PO Volpi has had four prior CCRB complaints involving 11 allegations, none of which have been substantiated § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Meyreles (Board Review 05) and PO Volpi (Board Review 06) testified that they each observed § 87(2)(b)'s vehicle and discussed amongst each other about signaling for him to pull over. § 87(2)(g)
- § 87(2)(b) (Board Review 07) alleged that the officer who frisked and searched him was the same officer who questioned him about guns. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Allegation A – Abuse of Authority: Police Officer Julio Meyreles stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: Police Officer Brian Volpi stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C – Abuse of Authority: Police Officer Brian Volpi questioned § 87(2)(b)
§ 87(2)(b) testified that at the time of the incident, he left his home at § 87(2)(b) in Queens and traveled to pick his girlfriend up from work at § 87(2)(b). § 87(2)(b) was driving a 2003 four door silver Acura TL. All of § 87(2)(b)'s windows are tinted with the exception of his front windshield. § 87(2)(b) denied using his cell phone while driving, and testified that his cell phone was in a cup holder. Approximately four minutes after leaving his home, § 87(2)(b) was pulled over by PO Meyreles and PO Volpi. After providing his license and registration, § 87(2)(b) was asked to step out of his vehicle and was escorted to the rear of the vehicle with PO Volpi. PO Volpi allegedly asked § 87(2)(b) “where the guns were at.”

PO Meyreles testified that that as he and PO Volpi drove eastbound, he observed § 87(2)(b) driving westbound with one hand on his steering wheel and another hand holding his cell phone. PO Meyreles also noticed that § 87(2)(b) had tints on his windows. PO Volpi testified that he observed § 87(2)(b)'s excessively tinted windows, but did not see § 87(2)(b) using a cell phone. PO Meyreles and PO Volpi discussed their observations with each other, and decided to pull § 87(2)(b) over.

PO Balena (Board Review 08) and Det. Clarke (Board Review 09) testified they arrived at the location after the vehicle stop was initiated by PO Meyreles and PO Volpi. Both PO Balena and Det. Clarke denied having any knowledge as to why § 87(2)(b) was pulled over, and Det. Clarke explained that they arrived at the location after being called to do so by PO Meyreles and PO Volpi.

PO Volpi denied questioning § 87(2)(b) about guns, and PO Meyreles and PO Balena denied hearing any conversation with § 87(2)(b) involving guns. Det. Clarke testified that he remained inside the prisoner van, and was unaware of § 87(2)(b)'s conversations with any of the officers.

§ 87(2)(a) 160.50 [REDACTED]

§ 87(2)(a) 160.50

§ 87(2)(g)

. It is therefore recommended that **Allegation A, Allegation B, and Allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: Police Officer Julio Meyreles searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Meyreles searched § 87(2)(b)'s vehicle and recovered marijuana from the glove compartment.

PO Meyreles and PO Volpi each testified that they smelled marijuana immediately after approaching § 87(2)(b)'s vehicle. PO Volpi, who approached on the driver's side, could not distinguish specifically where in the vehicle the odor was emanating from, though PO Meyreles, who approached on the passenger's side, believed the marijuana odor was emanating from the front passenger's side of the vehicle. Upon recognizing the odor of marijuana, § 87(2)(b) was asked to step out of the vehicle. PO Meyreles testified that PO Volpi also informed him of marijuana ash visible on § 87(2)(b)'s shirt, at which point PO Meyreles considered § 87(2)(b) to be under arrest. PO Meyreles conducted a search of § 87(2)(b)'s vehicle, and recovered a Ziploc bag containing 25 grams of marijuana from his glove compartment.

In his testimony to the CCRB, § 87(2)(b) acknowledged that he had a Ziploc bag of marijuana in his glove compartment. Regarding the ash on his shirt, § 87(2)(b) testified that it was from a cigarette he smoked while driving.

An officer has probable cause to search an entire vehicle, including the glove compartment and trunk, when the officer detects an odor of marijuana emanating from the vehicle People v. Hughes, 68 A.D. 3d 894 (2nd Dept.) (Board Review 11).

§ 87(2)(g)

_____, it is recommended that **Allegation D** be closed as **exonerated**.

Squad: #10

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer:

Title/Signature

Print

Date